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'She was my sister': Haitian immigrant seeks answers after sister's sudden death in Pittsburgh

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[Editorial Standards](#) ⓘ**Kalea Gunderson** ✉

Reporter

PITTSBURGH — A Haitian immigrant living in Washington County, Pennsylvania, is searching for answers following the sudden death of his sister, Daphy Michel.

Pittsburgh's Action News 4 confirmed through multiple sources that Daphy was found unresponsive at a bus shelter in Pittsburgh days after being released from jail.

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Daphy, 31, was seeking asylum in the United States. Her brother, Carlo, was living and working in Washington County under TPS, or Temporary Protected Status.

Carlo, who speaks Haitian Creole, sat down with Pittsburgh's Action News 4 and an interpreter to talk about the loss of his sister and the questions he has surrounding her death. We've agreed to conceal his identity due to his concerns for his safety.

Carlo expressed disbelief, saying, "I don't know if it's true, if it's reality." Daphy had been held at the Washington County Jail for nearly six months on a \$10,000 bond.

Daphy finally appeared before a judge two weeks ago. Court documents revealed that one of Daphy's neighbors on 1st Street in Charleroi, Washington County, reported in September that Daphy was experiencing "significant mental health episodes." According to the Washington County Public Defender's Office, her preliminary hearing was continued seven times, partially due to her awaiting a mental health evaluation.

At the hearing on Feb. 26, the judge dismissed the two misdemeanor harassment and threat charges against her. Her brother expressed relief at welcoming her home.

"At the court, I saw my sister. I saw Daphy. She wasn't having any problem," Carlo said.

Carlo left court and waited for the call that his sister's release from jail has been processed. However, on March 2, four days after her charges were dismissed, Carlo received an unexpected call from UPMC hospital. A doctor asked if he recognized Daphy Michel.

Carlo said, "I replied them back, to let them know that it's my sister."

Carlo said he was informed by a doctor and an interpreter that his sister had died.

Immigration and Civil Rights Attorney Joseph Murphy from Allegheny Immigration Group is assisting Carlo in understanding the circumstances surrounding Daphy's death.

"This is an older brother. It's his younger sister. They told him on a Thursday that she was, the charges were dismissed, and she was going to be released. She doesn't come out on Friday. He gets a call on Monday that she's dead. This is obviously going to make questions in anybody's mind," Murphy said.

Port Authority Police said maintenance workers at the Mon Incline spotted Daphy lying on the ground of a bus shelter across East Carson Street near the Smithfield St. Bridge, shortly after 10 a.m. on March 2. She was not breathing and had no pulse, Port Authority Police said. Officers attempted life-saving measures using CPR, an AED, and Narcan before she was taken to UPMC Presbyterian Hospital in critical condition.

"The doctor told the family it was a cardiac arrest. The in-between part is the part that confuses everybody," Murphy said.

The ankle monitor she was wearing when she died raised questions as well.

"The doctor told me that she has a bracelet on her feet," Carlo said.

The Washington County Public Defender's Office said Daphy had an ICE detainer on her file. That's a request from ICE that the agency be notified before an individual is released from law enforcement custody or jail.

In response to my list of questions, ICE confirmed that on Feb. 27, the day after Daphy's charges were dismissed, she was enrolled in the agency's "Alternatives to Detention Program" at the ERO Pittsburgh Office, or "Enforcement and Removal Operations" Pittsburgh office in the city's South Side.

An ICE Public Affairs Officer shared the following statement:

“On February 27, ICE ERO Pittsburgh officers processed Daphy Michel at the ERO Pittsburgh office for enrollment in ICE’s Alternatives to Detention program due to a release on an ICE detainer from the Washington County Jail in Washington, Pennsylvania. ICE determined charges against Michel for Terroristic Threats and Harassment had been dismissed. ICE served Michel with another Order of Release on Recognizance and placed her on reporting requirements through electronic monitoring while her original immigration proceedings remained pending.

Michel, an illegal alien from Haiti, was paroled into the United States at the Brownsville, Texas, port of entry on Dec. 14, 2022. Michel did not have lawful immigration status in the United States and was charged as inadmissible under section 212 of the Immigration and Nationality Act.

On March 3, ERO Philadelphia was notified of a strap tamper alert from the electronic monitoring unit Michel was wearing, indicating the unit was removed.

For any further questions regarding Ms. Michel’s death, we will refer you to the Allegheny County Medical Examiner’s office.”

The statement also noted that Daphy was paroled into the U.S. That means she entered under a discretionary authorization, which allows a noncitizen into the country for urgent humanitarian reasons.

Immigration records are sealed, but the family confirmed that after being paroled into the United States, she filed a written request for political asylum.

Pittsburgh’s Action News 4 reporter, Kalea Gunderson, asked ICE several questions, including when she arrived to the ERO Pittsburgh Office, when and where she was given the ankle monitor, how long she was in ICE custody, and when and where she was released. Those questions remain unanswered.

Murphy explained the process that likely occurred after Daphy was released from the Washington County Jail on an ICE detainer.

"Most likely she would have gone to ERO first, where they decided what they wanted to do with her," Murphy said. "They could have taken her into custody, held her in immigration detention, potentially started a detained deportation proceeding, whatever it was. Obviously, the charges were dismissed. So, they can't deport her for the charges that, you know, she's not guilty of. And they decided they wanted to have some monitoring on her, and that would have been done at the Jane Street office."

ISAP, the “Intensive Supervision Appearance Program is located there. That’s where Murphy said a private contractor is paid to put ankle monitors on non-citizens with pending immigration cases.

“It seems perfectly reasonable if you're going to take someone all the way up here and that far out of their element and process them for all these different things, you could just as easily have driven them back down there, where they'd have their support networks and ideally, where things like this were much less of a risk,” Murphy said.

After being released from jail, the timeline to Daphy’s death is unknown.

ICE confirmed that on March 3, the day after Daphy’s death, the agency received an alert from Daphy’s ankle monitor, indicating it had been removed. By that point, her body was in the custody of the Allegheny County Medical Examiner’s Office, awaiting an autopsy.

“Why is she dead? What was she doing wandering around in Pittsburgh? These are all things that any loved one would want to have something we call closure,” Murphy said.

In Daphy’s efforts to secure legal status in the United States, the Executive Office for Immigration Review confirmed she was set to appear before a judge in Florida on April 16 for a hearing on her immigration case.

“We were looking for a better way, a better health for her,” Carlo said. “These country really respect the law, and they respect people, and she came here, looking for life. That is the reason she came here.”

Now, Carlo is left trying to understand his sister’s final steps, which led her to a bus shelter on March 2.

“I need the justice for my sister,” Carlo said.

Autopsy and toxicology results could take several weeks.

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